

File No.: EXP202211611

RESOLUTION No.: R/00214/2023

Considering the complaint filed on October 24, 2022, with this Agency by Ms. A.A.A. against UNIQLO EUROPE, LTD, S.E. for not having properly addressed her right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Ms. A.A.A. (hereinafter, the complainant) purchased a product from UNIQLO EUROPE, LTD, S.E. with NIF W8266168G (hereinafter, the respondent, or Uniqlo).

When she attempted to return the product, it was not accepted, indicating that it was not in its original condition. After an exchange of emails between the parties regarding the complainant's dissatisfaction, Uniqlo informed her that "(...) we will contact the store to initiate an investigation and see if it is possible to verify through the security cameras that the product was delivered in the conditions you describe."

Uniqlo responded that they had investigated and confirmed that the product was not in acceptable condition to be accepted.

The respondent, after an incident regarding the denial of the return of a product purchased from Uniqlo, and the various emails exchanged between the two parties, requested "(...) I want to exercise my right of access to the recordings in which I appear and of which you have made use to carry out said investigation. The reason is to present the images as evidence in the official complaint that the accusations are false and that you are acting in bad faith by using them as a fabricated argument to deny me the right I have by law to an exchange/refund.

I also request that you indicate how my images were processed during the investigation, as they are sensitive personal data: who is responsible for processing my images, who has had access to such data in the store, how my identification was carried out, and how the security personnel reached the conclusion that the product is used, the tag is intact, etc., without having shown the images to a sales assistant."

Uniqlo replied that "(...) Unfortunately, due to the privacy protection of our customers, we cannot provide such material to an individual. We can only share such material for your official investigation when requested by the authorities."

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SECOND: On October 24, 2022, a complaint from the complainant against Uniqlo for not having properly addressed her right of access was received by this Agency.

THIRD: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The respondent has indicated that the surveillance images were not checked at any time as informed to the complainant, and that "(...) it did not obstruct the exercise of the right of access, but was denied for the reasons clearly stated in the communication provided to the complainant."

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on December 14, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the

maximum period to resolve the present procedure, which is understood to have commenced through said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days it could present any allegations it deemed appropriate. This entity stated, in summary, and as far as this procedure is concerned, that "(...) Based on the result of the internal investigation, UNIQLO states that on the day of the incident, no surveillance images were processed due to a maintenance issue.

Therefore, in the absence of Material (which if it existed could justify an action under Article 15 of the GDPR and Article 13 of the LOPDGDD), UNIQLO considers that the request of the interested party under the aforementioned articles cannot be exercised."

FIFTH: After examining the allegations presented by the respondent, they are subject to transfer to the complainant, so that, within fifteen working days, she may formulate any allegations she considers appropriate.

The complainant states, in summary, that she has sent a new complaint to Uniqlo regarding the denial to return the product, and that the response received is that they had reviewed the security cameras.

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3/7

SIXTH: After granting a hearing to the respondent, they state that

"Without a doubt, this statement from customer service has caused confusion and has led to a misunderstanding regarding the possibility of obtaining a video of Mrs. A.A.A.'s purchase. This possibility was not only incorrect from the perspective of internal procedure but also impossible from a technical standpoint due to the fact that there was [no type of video in the store that day]. The claimant continues to insist that the images were reviewed to resolve the incident, when this was not the case, as has been stated on several occasions by UNIQLO and as the customer service department itself informed her by indicating that they had contacted the manager who personally attended to her on the day of the incident to carry out the investigation.

(ii) Absence of personal data contained in the disputed material: Due to maintenance issues with the security cameras, on the day the interested party visited our store located at ***ADDRESS.1 (date of the incident referred to by the opposing party), no surveillance images were recorded.

In this context, UNIQLO considers that the rights set forth in Article 15 of the GDPR (right of access) and Article 13 of the LOPDGDD cannot be exercised due to the absence of Material."

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

Said agreement to admit the procedure determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an agreement to admit the procedure, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement to admit the procedure was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities referred to in the request." The right will be understood as granted if the controller provides remote access to the data, considering the request as attended (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in such a case, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

FIFTH: The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the right of access to the requested images will be analyzed and evaluated.

Additionally, it should be noted that this Agency lacks competencies in consumer matters, so it cannot analyze the circumstances related to the return of the product purchased from the entity being complained about.

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6/7

Therefore, and taking into account the provisions of the previous paragraphs, it has been established that the complaining party requested access to the images in which they appear, and that the entity being complained about has not attended to this right.

The assertion of the entity being complained about that "In this context, UNIQLO considers that the rights set forth in Article 15 of the GDPR (right of access) and Article 13 of the LOPDGDD cannot be exercised due to the absence of Material" cannot be accepted.

According to the provisions of data protection legislation, the controller must expressly respond to the aforementioned right, attending to it and providing the requested information, or denying it with justification in case there are no data or they cannot be provided, with the burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the complaining party falling on the controller.

Consequently, it is appropriate to uphold the present rights procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. and to urge UNIQLO EUROPE, LTD, S.E. with NIF W8266168G, to, within ten working days following the notification of this resolution, send to the complaining party a certification that addresses the requested right of access or denies it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to UNIQLO EUROPE, LTD, S.E.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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7/7

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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